

## 20STCV21704 20STCV21704

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-08-14

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C729%2C08%2F14%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C729%2C08%2F14%2F2026)

Source SHA-256: 0906c72c4bcc15263f14934dec21ebacd52de81caf7c869b7212d93583883a00

Case Number: 20STCV21704 Hearing Date: August 14, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

GRIFFITH COMPANY,

vs.

WESSEX INVESTMENTS, LLC, et al.

Case

No.: 20STCV21704

Hearing Date: August 14, 2026

Defendants/Cross-Complainants Wessex

Investments, LLC's and ABP Parcel 6, LLC's motion for attorneys' fees against Plaintiff/Cross-Defendant Griffith Company is continued

to September 1, 2026, at 8:30 AM.

Parties are instructed to file

simultaneous, supplemental briefs not longer than five pages with a copy of the OCIP policy as it applies to the attorneys' fees sought in this motion. Supplemental briefs are to be filed with this Court on August 21, 2026, at 12:00 PM.

#### Defendants/Cross-Complainants

Wessex Investments, LLC ("Wessex") and ABP Parcel 6, LLC ("ABP") ("Defendants/Cross-Complainants") move for an order awarding their attorneys' fees against Plaintiff/Cross-Defendant Griffith Company ("Griffith") ("Plaintiff/Cross-Defendant") in the total amount of \$3,818,537.50. (Notice of Motion, pg. 2; Motion, pg. 6; C.C.P. §1717.)

#### Background

On May 11, 2026, Defendants/Cross-Complainants filed the instant motion for attorneys' fees. Plaintiff/Cross-Defendant filed its opposition on August 3, 2026. Defendants/Cross-Complainants filed their reply on August 7, 2026.

#### Discussion

##### Civil

Code §1717 governs the prevailing party determination. It provides, in part, that "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code §1717(a).) Civil Code §1717(b)(1) provides that the court shall determine who is the party prevailing on the contract and "the party prevailing on the contract shall be the party who recovered a greater relief in the action on the contract." (Civ. Code §1717(b)(1); see also *Hsu v. Abbara* (1995) 9 Cal.4th 863, 876 ["Accordingly, we hold that in deciding whether there is a 'party prevailing on the contract,' the trial court is to compare the relief awarded on the contract claim or claims with the parties' demands on those same claims and their litigation objectives as disclosed by the pleadings, trial briefs, opening statements, and similar sources. The prevailing party determination is to be made only upon final resolution of the contract claims and only by 'a comparison of the extent to which each party

ha[s] succeeded and failed to succeed in its contentions.”]; id. at pgs. 875-876 “[W]hen the results of the litigation on the contract claims are not mixed—that is, when the decision on the litigated contract claims is purely good news for one party and bad news for the other—the Courts of Appeal have recognized that a trial court has no discretion to deny attorney fees to the successful litigant.”.)

Here, §9.25.2

of the Contract between Defendants/Cross-Complainants and Plaintiff/Cross-Defendant provides for recovery of fees if a breach by Plaintiff/Cross-Defendant leads to Defendants/Cross-Complainants incurring fees as a result thereof. Section 9.25.2 provides:

First

Party Claims for Breach of Contract. Except to the extent a claim falls within the scope of coverage of the OCIP described in Article 9.8 above, in the event OWNER shall suffer any loss, cost, expense, damages; including but not limited to demolition, rework, remobilization, delay, redesign, or repair expenses to any part of the Project arising from or related to CONTRACTOR's failure to fulfill its contractual obligations under this CONTRACT, (including any addenda to this CONTRACT, “extras” or written or verbal change orders to this CONTRACT) (individually and collectively a “First Party Claim”), it is the express intent of the parties to this CONTRACT that CONTRACTOR shall indemnify, defend and hold INDEMNITEES harmless, to the maximum extent permitted by law to the extent the First Party Claim arises from the negligence, intentional acts or willful misconduct of CONTRACTOR, including but not limited to, attorneys' fees, and expert and consultants' fees incurred as a result thereof. It is expressly agreed and understood by CONTRACTOR and OWNER that the obligations imposed upon CONTRACTOR by this provision are unequivocally binding, valid and enforceable even if it is claimed or alleged that OWNER and/or OWNER was actively or passively negligent, strictly liable in tort or otherwise responsible for any such claims, damages, injury, loss, liability or expense. Nothing herein shall be construed to require CONTRACTOR to indemnify the INDEMNITEES for liability arising from the sole negligence or willful misconduct of the INDEMNITEES. The parties hereto agree that it is their mutual intention to create a specific indemnity CONTRACT, and not a “Type I” indemnity, by these provisions. Payment to CONTRACTOR by OWNER shall not be a condition precedent to enforcing OWNER's rights to indemnification. The indemnity set forth in this section shall survive the expiration or termination of this CONTRACT until such time as action against OWNER or OWNER on account of any matter covered by this indemnity is barred by the applicable

statute of limitations.

(Decl. of Taran ¶12, Exh. A at §9.25.2.)

The

parties argue in their own favor as to whether attorneys fees in this case are subject to the exception in §9.25.2 (e.g., “Except to the extent a claim falls within the scope of coverage of the OCIP described in Article 9.8 above”). Neither party attaches a copy of the OCIP at issue in support of or against their respective position. This Court cannot make a proper evaluation of this motion without the text of the OCIP.

Defendants/Cross-Complainants

Wessex Investments, LLC's and ABP Parcel 6, LLC's motion for attorneys' fees against Plaintiff/Cross-Defendant Griffith Company is continued to September 1, 2026, at 8:30 AM.

Parties

are instructed to file simultaneous, supplemental briefs not longer than five pages with a copy of the OCIP policy as it applies to the attorneys' fees sought in this motion. Supplemental briefs are to be filed with this Court on August 21, 2026, at 12:00 PM.

Conclusion

Defendants/Cross-Complainants

Wessex Investments, LLC's and ABP Parcel 6, LLC's motion for attorneys' fees against Plaintiff/Cross-Defendant Griffith Company is continued to September 1, 2026, at 8:30 AM.

Parties

are instructed to file simultaneous, supplemental briefs not longer than five pages with a copy of the OCIP policy as it applies to the attorneys' fees sought in this motion. Supplemental briefs are to be filed with this Court on August 21, 2026, at 12:00 PM.

Moving

Party to give notice.

Dated: August \_\_\_\_, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court